



DEPARTMENT OF HEALTH AND HUMAN SERVICES

March 06, 2026

The Honorable Terrance C. Cole
Administrator
Drug Enforcement Administration
U.S. Department of Justice
8701 Morrisette Drive
Springfield, VA 22152

Dear Administrator Cole:

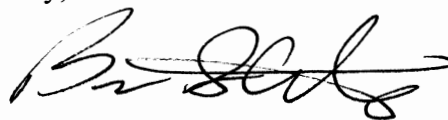
Thank you for your letter, dated February 24, 2026, notifying the Department of Health and Human Services (HHS) of your intention to temporarily place 7-hydroxymitragynine [Chemical name: (E)-Methyl-2-((2S,3S,7aS)-3-ethyl-7a-hydroxy-8-methoxy-1,2,3,4,6,7,7a, 12b-octahydro indolo[2,3-a]quinolizin-2-yl)-3-methoxyacrylate] above a certain threshold (derived from HHS's July 28, 2025, scheduling recommendation) into Schedule I of the Controlled Substances Act (CSA).

7-Hydroxymitragynine above a certain threshold shall be defined as:

- (A) Any botanical material of the plant *Mitragyna speciosa*, also known as kratom, and contains more than 0.050 percentage of 7-hydroxymitragynine on a dry weight basis, or
- (B) Any alternative article to that described in (A), that is:
 - i. Resulting from synthetic methods and containing 7-hydroxymitragynine present in amounts greater than 0.05 percentage weight/weight, weight/volume, or volume/volume or greater than 1.00 milligram of 7-hydroxymitragynine in the article, or
 - ii. Material derived from *Mitragyna speciosa* and further processed to manufacture alternative dosage forms such as extracts, concentrates, processed edibles, or pressed pills, and which may have materials that have been exposed to chemical, thermal, or other methods leading to chemical transformations that result in 7-hydroxymitragynine present in amounts greater than 0.05 percentage weight/weight, weight/volume, or volume/volume or greater than 1.00 milligram of 7-hydroxymitragynine in the article

The Food and Drug Administration was asked to review its files. I have been advised that there are currently no approved new drug applications or investigational new drug applications for these substances. Therefore, HHS has no objection regarding your plan to temporarily place 7-hydroxymitragynine above a certain threshold into Schedule I of the CSA.

Sincerely,

A handwritten signature in black ink, appearing to read "Brian Christine", with a stylized flourish at the end.

Brian Christine, M.D.
Admiral, United States Public Health Service
Assistant Secretary for Health